

		under section 437c, subdivision (h).” (Cooksey v. Alexakis (2004) 123 Cal.App.4th 246, 254.) Here, the Court finds Plaintiffs have not made the showing required under CCP section 437c(h), for their requested continuance of 120 days. Plaintiffs have not shown that the evidence necessary to defeat this motion may exist. In his declaration, Menon states: “We are not asking for this continuance because we are seeking to delay the resolution of this case. We are asking because we have been placed in an impossible position through no fault of our own. Our counsel has informed us that he cannot find an expert willing to support liability, but we believe the evidence tells a different story. We need time to find an attorney who can present that evidence properly. (ROA 153 [Menon Decl. at ¶ 13].) The Court notes this action was filed in February 2024 (i.e., more than two years ago). Defendant’s counsel attests that no written discovery has been served by Plaintiffs, nor have they noticed the depositions of any defendant or witnesses. (ROA 165 [Bunch Decl. at ¶ 4].) Plaintiffs’ counsel’s (recent) request to withdraw does not explain why opposing evidence could not have been obtained in the more than two years since this action was filed, or the months since this motion was filed. The Court notes that Plaintiffs submitted “supplemental declarations” on 6/5/26 (ROA 169), but the Court need not consider these tardy declaration because Plaintiffs have not shown good cause. Further, the supplemental declarations do not raise a triable issue of material fact. For the foregoing reasons, Defendant Day’s motion for summary judgment is granted; Plaintiffs’ request for a continuance is denied. Defendant is ordered to give notice of the ruling.
8	Mohan vs. USC Developers LLC 2026-01562032	Motion to Expunge Mechanics Lien The court will hear argument.
9	Niguel Summit Community Association vs. Pacific Island Village III Homeowners Association, Inc.	Demurrer to Complaint / Motion to Strike Complaint The Court sustains Defendant Monarch Summit I Homeowners Association’s Demurrer to the second cause of action for negligence per se in Plaintiff Niguel Summit Community Association’s Complaint. The remainder of the Demurrer is overruled. <u>Merits</u>

2024-01443810	Plaintiff Niguel Summit Community Association sues Defendants Pacific Island Village III Homeowners Association Inc. and Monarch Summit I Homeowners Association for: 1. Negligence 2. Negligence per se 3. Trespass 4. Nuisance 5. Breach of governing documents Plaintiff has dismissed the fifth cause of action. (ROA 46.) <u>Negligence</u> Plaintiff alleges that defendants Pacific Island and Monarch Summit negligently maintained, repaired, and replaced property, including but not limited to improvements and drainage (“PI and MS Common Areas”) that is adjacent to Plaintiff’s Common Areas. (Compl., ¶¶5, 15.) Plaintiff then alleges that as a result of the work done by Defendants on their own property, Plaintiff’s Common Area was inundated with water, mud, and debris. (FAC, ¶16.) A complaint for damages for negligent injury to person or property must allege: (1) defendant's legal duty of care toward plaintiff; (2) defendant's breach of duty, i.e., the negligent act or omission; (3) injury to plaintiff as a result of the breach, i.e., proximate or legal cause; and (4) damage to plaintiff. (See 4 Witkin, Cal. Procedure. (<i>Pultz v. Holgerson</i> (1986) 184 Cal.App.3d 1110, 1116–1117.) A property owner may use his or her land for any lawful purpose, provided the owner exercises ordinary care and skill to prevent injury to adjacent owners. (<i>Haehlen v. Wilson</i> (1936) 11 Cal. App. 2d 437, 441.) Defendant argues that there are insufficient allegations as to specifically what it did to cause Plaintiff’s Common Area to be flooded with water and debris. The Court disagrees. The Complaint alleges that “Defendants knew or should have known that if the drainage course controlled by Defendants was altered and not maintained, the drainage course, including the ditches, drains, and culverts would not function and the water would overtop, overflow, flood and discharge onto Plaintiff’s Common Area, and further, said water, mud, and debris
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